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HUGO TORRES v. GENERAL
MOTORS, LLC

CASE NO.: 25NWCV01509

HEARING: 07/02/2026 @
9:30 AM

#11

TENTATIVE ORDER

I.
Defendant General Motors, LLC's motion for judgment on the pleadings as to the first through fourth causes of action is SUSTAINED without LEAVE TO AMEND.

II.
Defendant's motion for judgment on the pleadings as to the fifth cause of action is SUSTAINED with 30 days LEAVE TO AMEND.

Moving party to give notice.

Defendant General Motors, LLC (Defendant) moves for judgment on the pleadings as to all five causes of action in the complaint.

Background

On April 25, 2025, Plaintiff Hugo Torres (Plaintiff) filed this lemon law action against Defendant and Does 1 through 10. This action arises out of alleged defects and nonconformities to warranty Plaintiffs experienced with their 2018 Chevrolet Malibu, VIN: 1G1ZB5ST2JF234492 (Subject Vehicle). (Complaint, ¶¶ 6, 10-12.) The complaint asserts five causes of action: (1) violation of Civil Code section 1793.2, subd. (d); (2) violation of Civil Code section 1793.2, subd. (b); (3) violation of Civil Code section 1793.2, subd. (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement-concealment.

Legal Standard

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438, subd. (f).) Except as provided by statute, the rules governing demurrers apply. (Civic Partners Stockton, LLC v. Youssefi (2013) 218 Cal.App.4th 1005, 1012 “As when ruling on a demurrer, the court is required to consider only allegations contained within the complaint, which are presumed to be true, or facts of which it may take judicial notice.” (Tung v. Chicago Title Co. (2021) 63 Cal.App.5th 734, 758-59.) In ruling on a motion for judgment on the pleadings, “[a]ll allegations in the complaint and matters upon which judicial notice may be taken are assumed to be true.” (Rippon v. Bowen (2008) 160 Cal.App.4th 1308, 1313.) “A motion for judgment on the pleadings may be made at any time either prior to the trial or at the trial itself.” (Stoops v. Abbassi (2002) 100 Cal. App. 4th 644, 650.)

“If the motion is granted in favor of the plaintiff, it shall be based on the grounds that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc., § 438 subd. (c)(3)(A).)

Meet and Confer

Under Code of Civil Procedure section 439, subdivision (a), the moving party shall meet and confer in person or by telephone with the party who filed the pleading to determine whether an agreement can be reached. (Code Civ. Proc., § 439 subd. (a).) The moving party shall file and serve a declaration concerning the parties meet and confer efforts. (Code Civ. Proc., §

439 subd. (a)(3).)

The parties have adequately met and conferred. (Seebart Decl., ¶ 2.)

Request for Judicial Notice

Defendant requests the Court take judicial notice of "General Motors LLC's election to opt-in to Cal. Code of Civil Procedure § 871.20 et seq, as maintained on the California Department of Consumer Affairs' government website on April 23, 2025."

Defendant's request for judicial notice is GRANTED pursuant to Evidence Code section 452, subdivision (h).

Discussion

Defendant moves for judgment on the pleadings on the following grounds: (1) the first, second, and third causes of action are time-barred under the six-year statute of repose and statute of limitations for express warranty claims under Code of Civil Procedure section 871.21; (2) the fourth cause of action is tire-barred; (3) the fifth cause of action is time-barred and Plaintiff fails to plead facts to invoke delayed discovery; and (4) Plaintiff fails to plead fraud under the heightened pleading requirements.

First, Second, & Third Causes of Action: Violation of Civil Code section 1793.2, subd. (d); Violation of Civil Code section 1793.2, subd. (b); Violation of Civil Code section 1793.2, subd. (a)(3)

Defendant moves for judgment on the pleadings as to the first through third causes of action on the grounds that the claims are time-barred by the statute of limitations and statute of repose found in Code of Civil Procedure section 871.21.

Code of Civil Procedure section 871.21, subdivision (b) provides: "an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle." Code of Civil Procedure section 871.20 covers actions "brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (a) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty." (Code Civ. Proc., § 871.20, subd. (a).) Code of Civil Procedure section 871.21, subdivision (a) provides a one-year statute of limitations after the expiration of the express warranty.

Defendant shows that the complaint alleges that Plaintiff entered into a warranty contract with Defendant on or about April 1, 2019. (Complaint, ¶ 6.) Defendant argues that assuming the date Plaintiff entered into the warranty contract was the date of delivery, then the statute of repose expired on April 1, 2025, and Plaintiff's complaint, filed on April 25, 2025, would be untimely. Moreover, Defendant argues that the statute of limitations also bars these causes of action based on a three-year bumper to bumper express warranty and five-year power train warranty. (Complaint, ¶ 7; Exh. A.)

In opposition, Plaintiff argues that Section 871.21 does not apply because Plaintiff filed this action before July 1, 2025. However, Code of Civil Procedure sections 871.21 and 871.20 became effective on January 1, 2025. (See Legis. Counsel's Dig., Sen. Cone. Amends. to Assem. Bill No. 1755 (2023-2024 Reg. Sess.) Defendant also timely opted-in on April 23, 2025. (RJN, Exh. A.) Plaintiff additionally argues that the statute of repose does not exclude other equitable tolling doctrines. However, Section 871.21 expressly enumerates its tolling provisions and does not encompass equitable tolling. The statute of repose may be tolled for: "(1) As provided by tolling requirements prescribed in subdivision (a) of Section 1793.22 of the Civil Code, as applicable. (2) For the time the motor vehicle is out of service by reason of repair for any nonconformity. (3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days." (Code Civ. Proc., § 871.21, subd. (c).) The complaint does not allege facts sufficient to toll based on the expressing tolling provisions.

Plaintiff further argues that Plaintiff's inadequate literature/parts claim, arising out of Civil Code section 1793.2, subdivision (a)(3), is not covered by Code of Civil Procedure section 871.20 or 871.21. Defendant replies to this argument by establishing that Plaintiff's standing under Civil Code section 1793.2, subdivision (a)(3) runs through Civil Code section 1794, subdivision (a): “Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief.” The complaint expressly seeks such relief: “Defendant GM failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. Plaintiff has been damaged by Defendant GM's failure to comply with its obligations pursuant to Civil Code section 1793.2(a)(3), and therefore brings this Cause of Action pursuant to Civil Code section 1794.” (Complaint, ¶ 38.) As such, this argument is not persuasive.

Here, a reasonable interpretation of the complaint is that the Subject Vehicle was delivered to Plaintiff on or around the date Plaintiff entered their warranty contract, on April 1, 2019. As such, the six-year statute of repose and the statute of limitations serve to bar the first, second, and third causes of action.

Defendant’s motion for judgment on the pleadings as to the first, second, and third causes of action is SUSTAINED without leave to amend.

Fourth
Cause of Action – Breach of Implied Warranty of Merchantability

Defendant argues that the fourth cause of action is time-barred by the statute of limitations.

The statute of limitations on a claim for breach of an implied warranty of merchantability is four years.¿(Montoya v. Ford Motor Co.¿(2020) 46¿Cal.App.5th 493, 495.)¿The claim “accrues when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach.¿A breach of warranty occurs when tender of delivery is made.” (Comm. Code, § 2725, subd. (2).)¿There is no delayed-discovery rule with respect to accrual of a claim for breach of an implied warranty.¿(Cardinal Health 301, Inc. v. Tyco Electronics Corp.¿(2008) 169 Cal.App.4th 116, 129, 134.) If the contract expressly extends the warranty to “future performance” of the goods, then the claim accrues when the breach is discovered or should have been discovered.¿ But absent such an explicit extension, accrual occurs at the time of the breach, which is the time of delivery of the goods in question.¿ (Id. at p. 129.)

Here, as already stated, Plaintiff filed this action on April 25, 2025, which is over four years after when Plaintiff alleges entering into the warranty agreement. (Complaint, ¶ 6.) Plaintiff argues in opposition that tolling doctrines apply. However, courts have consistently rejected application of equitable tolling, delayed discovery, and repair-based tolling doctrines to implied warranty claims where accrual is fixed at delivery by statute. (Cardinal Health, supra, 169 Cal.App.4th at p. 133–134.) Plaintiff’s reliance on Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297 for the proposition that delayed discovery applies to implied warranty claims is also not persuasive. In Mexia, the Court of Appeal did not alter the statute of limitations or create a delayed-discovery accrual rule for implied warranty claims. To the contrary, Mexia quoted section 2725 and recognized that a breach of warranty occurs upon tender of delivery. (Mexia, supra, 174 Cal.App.4th at p. 1304–05.)

Accordingly, Defendant’s motion for judgment on the pleadings as to the fourth cause of action is SUSTAINED without leave to amend.

Fifth Cause of Action –
Fraudulent Inducement-Concealment

Defendant first argues that the fifth cause of action is barred by the statute of limitations.

Statute
of Limitations

The statute of limitations on a claim for fraud is three years from the date of accrual. (Code Civ. Proc., § 338, subd. (d).) The claim “is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338, subd. (d).)

Defendant argues that the complaint fails to allege facts justifying tolling by the delayed discovery rule. Defendant points to Plaintiffs’ allegation that “[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period.” (Complaint, ¶ 11.)

The Court agrees that the complaint fails to sufficiently allege delayed discovery. The complaint generally alleges “Plaintiff discovered Defendant's wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following GM's unsuccessful attempts to repair them.” (Complaint, ¶ 24.) This is insufficient: “When a plaintiff alleges the fraudulent concealment of a cause of action, the same pleading and proof is required as in fraud cases: the plaintiff must show (1) the substantive elements of fraud, and (2) an excuse for late discovery of the facts.” (Community Cause v. Boatwright (1981) 124 Cal.App.3d 888, 900.) “[F]or the belated discovery, the complaint must allege (1) when the fraud was discovered; (2) the circumstances under which it was discovered; and (3) that the plaintiff was not at fault for failing to discover it or had no actual or presumptive knowledge of facts sufficient to put him on inquiry.” (Ibid.) Here, Plaintiff generally claims that the fraud was discovered “shortly” before filing the complaint without sufficient facts regarding the circumstances and whether the delay was Plaintiff’s fault. As such, the demurrer is sustained with leave to amend on this basis.

Sufficiency of Allegations

Defendant additionally demurs to the fifth cause of action on the grounds that Plaintiff fails to allege fraud with the requisite specificity and based on the sufficiency of the allegations.

“[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.”

(Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868.) Concealment claims require the same specificity standard as fraud claims, but the requirement to plead how, when, where, to whom, and by what means misrepresentations were communicated do not apply to concealment. (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384 [“How does one show ‘how’ and ‘by what means' something didn't happen, or ‘when’ it never happened, or ‘where’ it never happened?”].) Rather, if a party alleges that a defendant’s duty to disclose arose by the virtue of their relationship or defendant’s exclusive knowledge or access to certain facts, “the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the¿general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission.” (Rattagan v. Uber Technologies (2024) 17 Cal.5th 1, 43-44.)

Here, the complaint alleges Defendant committed fraud by allowing the Subject Vehicle to be sold without disclosing that the Subject Vehicle and the 1.5L engine and/or its related components were defective. (Complaint, ¶ 47.) The complaint alleges Defendant knew about the defects prior to Plaintiff acquiring the Subject Vehicle “through sources not available to consumers, including pre-release testing data, early consumer complaints about the engine defects to GM and its dealers, testing conducted in response to those complaints, failure rates and replacement part sales data, aggregate data from GM dealers, among other internal sources of aggregate information about the problem.” (Complaint, ¶ 57.) Further, the complaint alleges that “[t]he Engine Defect was not known or reasonably discoverable by the Plaintiff before purchase and Plaintiff did not know about GM's fraudulent conduct alleged herein until Plaintiff made a reasonable number of attempts to repair the Engine Defect. (Complaint, ¶ 63.)

Defendant argues that Plaintiff fails to allege a transactional relationship, relying on Bigler-Engler v. Breg, Inc. [Bigler-Engler] (2017) 7 Cal.App.5th 276 which explains that a duty to disclose facts “arises only when the parties are in a relationship that gives rise to the duty, such as ‘seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual arrangement.’” (Bigler-Engler, supra, 7 Cal.App.5th at p. 311 [citing to Shin v. Kong (2000) 80 Cal.App.4th 498, 509]; see also Rattagan, supra, 17 Cal.5th at 43-44; Bjoin v. J-M Manufacturing Co., Inc. (2025) 113 Cal.App.5th 884.) The Bigler-Engler Court further states that “[s]uch a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Id. at p. 312.) Defendant argues that there is no allegation that Plaintiff purchased the Subject Vehicle directly from Defendant, interacted with Defendant, or that the purchase gave a monetary benefit to Defendant.

In opposition, Plaintiff refers to Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844 to argue that the allegations in the FAC are similar to that in Dhital. Dhital found:

At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs’ allegations are sufficient. Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs’ claim is barred on the ground there was no relationship requiring Nissan to disclose known defects.

(Dhital, supra, 84 Cal.App.5th at p. 844.)

The complaint sufficiently alleges that Plaintiff and Defendant entered into a warranty contract and that knowledge was exclusively possessed by Defendant therefore creating a duty to disclose. However, the complaint lacks specific facts regarding Defendant’s knowledge and Plaintiff’s reliance.

Accordingly, Defendant’s motion for judgment on the pleadings as to the fifth cause of action is SUSTAINED with 30 days LEAVE TO AMEND.